

Terms & Conditions

Below you will find our terms and conditions that apply to your purchase of KOHLER®, STERLING®, KALLISTA®, ANN SACKS®, and ROBERN® products and accessories as well as all other items sold (which are referred to in this agreement as the "products") from the KOHLER.com website at us.KOHLER.com and associated sites, and related Kohler Install Services for such products (referred to in this agreement as the "services").

1. These Terms

1.1 What This Agreement Covers. These are the terms and conditions on which we supply products and services to you. Product purchases do not come with installation services. If you would like to purchase installation services, such services must be purchased separately.

1.2 Why You Should Read This Agreement. Please read these terms carefully before you submit your order to us. These terms tell you who we are, how we will provide products and services to you, how you and we may change or end the agreement, what to do if there is a problem and other important information. By submitting an order to us, you agree to accept the terms set out below.

2. Information About Us and How to Contact Us

2.1 Who We Are. We are Kohler Co., a Wisconsin corporation, headquartered at 444 Highland Drive, Kohler, WI 53044.

2.2 How to Contact Us. You can contact us by calling Kohler Customer Service at 1-800-4-KOHLER (1-800-456-4537) 8:00 AM - 5:00 PM (Central Time Zone) Monday – Friday. You can also contact us via email or chat by following the instructions at this link.

2.3 How We May Contact You. If we contact you, we will do so by telephone or by writing to you at the email address or postal address you provided to us in your order.

3. Our Agreement With You

3.1 How We Will Accept Your Order. Our acceptance of your order will take place when we email you an order acknowledgement confirming the details of your order, at which point a contract will come into existence between you and us.

3.2 If We Cannot Accept Your Order. Product and service availability may be limited in certain areas. If we are unable to accept your order for products or services, we will inform you of this in writing or by telephone and will not charge you for the product or services that cannot be provided. This might be because the product is out of stock, your payment card was not authorized, because of unexpected limits on our resources which we could not reasonably plan for, because we have identified an error in the price or description of the product, because these terms have not been complied with, because services are not available for every product, or because some products require that a certified professional physically install the products. If the product ordered is out of stock, you will have the option to receive a refund or wait for the product to ship once it is restocked.

3.3 We Only Sell to the United States of America. Our website is solely for the promotion of our products in the U.S. and we do not accept orders for products to addresses outside the U.S. Shipments to Alaska and Hawaii have shipping restrictions which may limit availability of certain products. Services are only offered in certain geographical areas in the U.S. We may change the locations where we offer services at any time.

3.4 No Resale or Export. KOHLER.com orders are for individual use only; bulk, stock, or resale orders are prohibited and may be rejected. Kohler products may be restricted for sale in certain jurisdictions or to certain customers, and therefore products are not allowed to be exported outside of the United States.

3.5 Other Sales Limitations. We only knowingly sell products and services to adults, so you are not permitted to purchase products or services if you are under the age of majority where you live (typically this is eighteen (18) years old). An adult at least eighteen (18) years old with a valid, government issued photo ID must be present during any service appointment to authorize and approve all work completed. By agreeing to receive service(s), you authorize us to perform the requested service(s) and you represent that you have the right to authorize the performance of the service(s) and that you have obtained any additional and necessary authorizations (e.g., from a landlord or homeowner's association as applicable).

4. Rights to Make Changes

4.1 Your Rights to Make Changes. Please promptly contact us if you wish to make a change to your order for products or services. We will let you know if the change is possible. If it is possible, we will let you know about any changes to the price of the product or service, the timing of supply or anything else which would be necessary as a result of your requested change, and we will ask you to confirm whether you wish to go ahead with the change. If we cannot make

the change or the consequences of making the change are unacceptable to you with respect to your product order, you may be allowed to cancel your order if it has not shipped yet.

4.2 Our Rights to Make Changes. We may change the product to reflect changes in relevant laws and regulatory requirements. We will contact you if there are any material product changes prior to fulfilling your order. We may change the Pro assigned to your service order at any time and for our convenience but will endeavor to minimize changes to avoid rescheduling. The Pro may also make scheduling changes based on their schedule.

5. Performance of Services

5.1 Scheduling the Service. Upon checkout you will receive a survey to provide preferred installation days and times. The Pro will reach out to you to confirm a specific date and time based on projected receipt of product as well as the Pro's schedule.

5.2 Pro Assigned to Provide the Services. We contract with independent third-party professional contractors (“Pros”) to provide the services. Once a Pro has been assigned, they will contact you to finalize the appointment date-and time and learn additional details about the services and the space where the products will be installed (the “Installation Space”). You will need to be available to allow the Pro into your home and verify via signature that the work is complete to your reasonable satisfaction in accordance with applicable installation specifications. If you are not able to make your scheduled service appointment, please promptly contact your Pro to reschedule the service appointment. The service appointment should be scheduled for a time after you have received and inspected the products.

5.3 Inspect the Product in Advance. Prior to the service appointment, you should unbox the product to ensure that the product complies with its written specifications from us and is not damaged. This helps maximize the time spent with the Pro.

5.4 Labor Only. Except where specifically stated or bundled, service or installation orders are service-only agreements. All required products (other than consumables) are your responsibility to procure. Labor beyond the scope of work for the service, which a Pro may not be able to perform, may incur an additional charge.

5.5 Space and Access. The Pro requires access to the Installation Space, Products, and water shutoff in order to complete the service(s), and this may require cooperation and coordination from you in providing access to these areas. You are responsible for ensuring that pets are safely removed from the Installation Space during the services, and that the Installation Space is safe, clear of any moveable items, adequate to perform the services, and any

personal items or valuable are stored elsewhere during the service. Services may not be performed if minimum requirements are not met or if physical issues are encountered (such as rotten subfloor, wiring issues or defects, loose pets in the Installation Space, unsafe conditions, or physical or technical barriers). Service may be denied if no adult is present when a Pro arrives for the service appointment, the Pro determines that they do not have appropriate authorization or cooperation from those present at the service location or the Pro determines that the working conditions are not safe. If a Pro's ability to perform or complete the service is impaired by you or circumstances beyond their control, the Pro/we may elect to not provide the service(s) and will notify you of the same. Pricing is contingent on accessibility to the Installation Space during the scheduled service time, expected conditions of the Installation Space, availability of the Products, and cooperation from you. The Pro may give you a quote for additional cost of the products or service which would be negotiated directly between you and the Pro. The difference (new price less the already paid price) will be paid directly to the Pro.

5.6 Completion of Services. Upon completion of the services, you will be provided an opportunity to inspect the installed product to ensure the service was performed to your reasonable satisfaction in accordance with the installation specifications. The Pro may request that you complete an Acknowledgement of Service Completion form to ensure that the services have been performed as expected.

6. Price and Payment

6.1 Price. The prices of the product and services are indicated on the order pages when you place your order. Prices online may differ from prices available in stores or available through other retailers. Prices of services may differ depending on your location.

6.2 Sales Tax. Sales tax for the products and services, as applicable, will be shown on the checkout page. Taxes applicable to products are based on the billing address. Taxes applicable to services are based on the service location.

6.3 Inaccurate Prices or Product Descriptions. Although we make reasonable efforts to ensure our prices for the products and services are correct, some products or services may be incorrectly priced. If the product's or service's correct price on your order date is higher than the price stated to you, we will contact you before we accept your order. If we accept and process your order where a pricing error is obvious and unmistakable and could reasonably have been recognized by you as a mispricing, we may cancel the order, refund your payment, and require the return of any goods provided to you. Although we make reasonable efforts to post accurate information

and images about our products, please note that products may look different in person, and the look of products can be affected by things such as your computer monitor settings.

6.4 Payment for Products. We accept payment with PayPal, Visa, Mastercard, Discover, and American Express credit cards; and debit cards. Payment for products must be received prior to shipment. We will not charge your card for your purchase of products until we ship the products to you. We may pre-authorize or place a hold on your credit or debit card when you complete a check out, which can affect your balance or credit line. We also may cancel or place a hold on any orders that we suspect may be fraudulent. We may offer additional payment options in the future at our discretion.

6.5 Payment for Services. We accept payment with PayPal, Visa, Mastercard, Discover, and American Express credit cards; and debit cards. When you purchase services, we pre-authorize or place a hold on your credit or debit card when you complete a check out, which can affect your balance or credit line. Upon completion of the services and the signing of the Acknowledgement of Service Completion form, we will remove the hold from your credit or debit card and charge you the full amount of the service.

7. Shipping & Delivery

7.1 Delivery Costs. Delivery charges are included in the checkout cart unless the order qualifies for free shipping, in which case this will also be identified in the checkout cart. Products that are too large, heavy, or bulky to be shipped by parcel shipping may incur additional charges and will be delivered curbside to the shipping address by scheduled appointment.

7.2 When We Will Provide the Products. We will deliver the goods to you as soon as reasonably possible, typically within 4 to 7 working days (Monday through Friday) once we accept your order. We will send you an email notification that the products have been shipped. If the products are backordered, please contact us and we will provide a new expected shipment date. If the revised date is not acceptable to you, you may modify or cancel your order. If for any reason the products are no longer available, we will notify you that we are cancelling the order and will promptly provide a full refund of any payments we received.

7.3 Delivery Delays Outside Our Control. If our supply of the products is delayed by an event outside our control, then we will contact you as soon as possible to let you know and we will take steps to minimize the effect of the delay. We will not be liable for delays caused by the event, but if there is a risk of substantial delay you may contact us to cancel the order and receive a refund for any products or service you

have paid for but not received. We recommend that you do not arrange for a plumber to install the goods until you have received and inspected the products.

7.4 Title and Risk of Loss. Title and risk of loss pass to you once the shipment has been delivered to the shipping carrier. In addition, title and risk of loss of any returns does not pass to us until the product arrives at our designated return location.

7.5 Additional Information. For additional details on Shipping & Delivery, please see this link.

8. Cancellations and Returns

8.1 Product or Service Cancellations. You may cancel your order for products prior to shipment by contacting us at 800-258-8441. If you cancel a product order prior to shipment, you may also cancel your related order for services at such time. To cancel a service appointment for a full refund, you must contact us at installservices.kohler.com, at least 48 hours before your scheduled appointment time. Cancellations within 48 hours will be handled on a case-by-case basis and may incur a partial or full-service charge.

8.2 Order Returns. In addition to the warranty rights, you may have under Section 10, you may return your product according to the product return information located on the packing slip included with your shipment. For the fastest assistance, please have your packing slip and order number ready for our customer service representative when you call us toll-free at the number listed above. For more information about product returns, see Return Policy. Return shipping charges are generally paid by the customer.

9. Our Rights to Cancel the Order

9.1 Our Rights to Cancel. We may cancel any order at any time upon notice to you if you have violated these terms or if we cannot reasonably deliver the products to you.

9.2 Discontinued Products. We may cancel an order if we discontinue supplying the products in your order. We will promptly notify you of the discontinuation and will refund any sums you have paid in advance for products which will not be provided.

10. Product and Service Warranties

10.1 Product warranty. Each product is supplied with Kohler's Manufacturer's warranty. In addition to the warranty language provided with the product, product warranties can also be found here. Please read these warranty terms carefully and inspect the product

upon delivery. You must promptly notify us of any product damage or defect after receiving the product. Should you have any product related concerns, contact us at the number listed below and we will service or repair the item (or if the product cannot be repaired, provide a like replacement) at no charge. This warranty is Kohler's sole and exclusive warranty on the products and the remedies set forth in the warranty terms are your sole and exclusive remedies for product warranty non-conformities.

10.2 Service warranty. We provide a service warranty that the service will be performed in a professional and workmanlike manner and all installation services will be warranted for one (1) year from the installation date. As long as you promptly notify us of any problems you have with respect to the services, we will re-perform the services at no additional charge to you, or we will refund the money you paid for the services, at our discretion. This warranty is Kohler's sole and exclusive warranty on services and the remedies described in this paragraph are your sole and exclusive remedies for service warranty non-conformities.

10.3 How to Tell Us About Problems. If you have any questions or complaints about the product or service, please call us at 1-800-4KOHLER ([1-800-456-4537](tel:1-800-456-4537)) or review the warranty documentation provided with the product. We will provide information on how to repair, return, or replace the products.

10.4 Disclaimer of Other Warranties and Limitation on Liability. THE WARRANTIES DESCRIBED IN THIS SECTION ABOVE ARE IN LIEU OF ALL OTHER WARRANTIES, REPRESENTATIONS OR COVENANTS WITH RESPECT TO THE PRODUCTS, SERVICES AND OTHERWISE ARISING UNDER THIS AGREEMENT, AND KOHLER CO. EXPRESSLY DISCLAIMS ALL OTHER REPRESENTATIONS, WARRANTIES AND COVENANTS, EXPRESSED OR IMPLIED, INCLUDING BUT NOT LIMITED TO THE IMPLIED WARRANTIES OF MERCHANTABILITY, TITLE, NON-INFRINGEMENT AND FITNESS FOR A PARTICULAR PURPOSE, AND ANY WARRANTIES ARISING IN STATUTE, COURSE OF PERFORMANCE, COURSE OF DEALING OR USAGE IN TRADE. TO THE MAXIMUM EXTENT PERMITTED BY LAW, KOHLER CO. DISCLAIMS ALL OTHER REPRESENTATIONS, WARRANTIES AND COVENANTS, AND ALL LIABILITY FOR SPECIAL, INCIDENTAL, PUNITIVE, INDIRECT, EXEMPLARY OR CONSEQUENTIAL DAMAGES ARISING FROM OR RELATED TO YOUR PURCHASE, THE PRODUCTS, THE SERVICES OR YOUR INABILITY TO USE SUCH PRODUCTS OR SERVICES, REGARDLESS OF THE FORM OF ACTION, WHETHER OR NOT YOU HAVE ADVISED US OF THE POSSIBILITY OF SUCH LOSSES OR DAMAGES, OR WHETHER OR NOT WE SHOULD HAVE BEEN AWARE OF THE POSSIBILITY OF SUCH LOSSES OR DAMAGES. Some jurisdictions do not allow limitations of how long an implied warranty lasts or the exclusion or limitation of certain damages, so

these limitations and exclusions may not apply to you. This warranty gives the consumer specific legal rights. You may also have other rights that vary from jurisdiction to jurisdiction.

11. How We May Use Your Personal Information

We will only use your personal information as set out in our Privacy Policy. Because services are provided by third-party Pros, by purchasing services you agree that we may share your personal information with the Pro assigned to provide the services. In addition, because the services may be performed via video, call, or otherwise in your home, the Pro may be inadvertently exposed to other personal information while the services are being performed.

12. Other Important Terms

12.1 Subcontracting. We may use third party providers to fulfill our obligations under this agreement, including order fulfillment, product installation and shipment/delivery. You acknowledge that we will not be directly performing the services and agree to such subcontracting with a Pro of our choosing.

12.2 No Assignment or Third-Party Beneficiaries. This agreement is between you and us. No other person shall have any rights to enforce any of its terms against us. You are not permitted to assign this agreement to any third party, and assignment in violation of this provision is void. Any warranty coverage may only be assigned according to the assignment provisions of the applicable warranty.

12.3 Governing Law and Venue. These terms and any orders placed on KOHLER.com are governed according to the laws of the State of Wisconsin, U.S.A., without reference to its conflicts of law principles. The exclusive venue for any judicial action or dispute arising out of or relating to this Agreement will be the state courts located in Sheboygan County, Wisconsin, or the federal courts located in the Eastern District of Wisconsin, and each party waives any challenge to venue or personal jurisdiction.

12.4 Force Majeure. Delays resulting from any cause outside of our reasonable control, including without limitation, acts of God, acts or requests of government or governmental agencies in their non-commercial capacity, riot or civil commotion, sabotage, accidents, fire, flood, explosion, damage to plants or facilities, epidemics, typhoons, quarantine restrictions, government mandates, weather, supply chain shortages or delays, failures or delays of third-party service providers and shipping providers, or absence of a normal means of communication or transportation (each, a “Force Majeure

Event”) will extend our time of performance under this agreement. You agree that we are not liable for any loss, damage, detention, breach or delay resulting from a Force Majeure Event.

12.5 Severability. Each part and Section of this Agreement is severable if held invalid or unenforceable by a court of competent jurisdiction. The remaining portions of this Agreement will not be affected and will be valid and enforceable. The Section and paragraph headings in this Agreement are for convenience only and will not affect the interpretation of this Agreement.

12.6 Waiver. Our failure to exercise or delay in exercising any right, remedy, power, or privilege arising from this Agreement will not be considered a waiver thereof, and no single or partial exercise of any right, remedy, power, or privilege hereunder will preclude any other or further exercise thereof or the exercise of any other right, remedy, power, or privilege.

12.7 Survival. Terms in this agreement that, whether by implication or nature, are intended to survive will survive the cancellation, expiration or termination of this Agreement.

12.8 Discounts. Discounts are subject to limitations and exclusions. Discounts may not be applied retroactively to purchases already made and discounts are not transferable from other locations, physical stores or other retailers, nor will Kohler.com price match discounts from other locations. Except for errors described in Section 6.3, discounts that apply will be shown in the checkout at the time of purchase.

12.9 Agreement. This agreement, including any documents referenced or linked in this agreement, and any other terms and conditions found on our website (such as our website terms of use/legal terms) or otherwise agreed to by you contain the entire agreement between you and us with respect to your purchase of the products and services, and they supersede any prior or contemporaneous conversations, acknowledgement, emails, negotiations or other documentation. Our sales and helpdesk representatives do not have the authority to modify this agreement.

13. Kohler Bathroom Design - Terms and Conditions

Below you will find our terms and conditions that apply to your purchase of Kohler Bathroom Design (“KBD”). By purchasing KBD, you agree to the provisions in this Agreement.

13.1 These Terms

13.1.1 What This Agreement Covers. These are the terms and conditions on which we supply KBD to you. Product purchases do not come with installation services.

13.1.2 Why You Should Read This Agreement. Please read these terms carefully before you submit your order of KBD to us. These terms tell you who we are, how we will provide services to you, how you and we may change or end the Agreement, what to do if there is a problem and other important information. By purchasing KBD, you agree to accept the terms set out below.

13.2 Information About Us and How to Contact Us

13.2.1 Who We Are. We are Kohler Co., a Wisconsin corporation, headquartered at 444 Highland Drive, Kohler, WI 53044.

13.2.2 How to Contact Us. You can contact us by calling Kohler Customer Service at 1-800-4-KOHLER (1-800-456-4537) 8:00 AM - 5:00 PM (Central Time Zone) Monday – Friday. You can also contact us via email or chat by following the instructions at this link.

13.2.3 How We May Contact You. If we contact you, we will do so by telephone or by writing to you at the email address or postal address you provided to us in your order.

13.3 Our Agreement With You

13.3.1 How We Will Accept Your Order. Our acceptance of your KBD order will take place when we email you an order acknowledgement confirming the details of your order, at which point a contract will come into existence between you and us.

13.3.2 If We Cannot Accept Your Order. If we are unable to accept your order for KBD, we will inform you of this in writing or by telephone and will not charge you for the services that cannot be provided. This might be because your payment card was not authorized, because of unexpected limits on our resources which we could not reasonably plan for, because we have identified an error in the price or description of the service, because these terms have not been complied with, or because services are not available.

13.3.3 We Only Sell to the United States of America. Our website is solely for the promotion of our products in the U.S., and we do not accept orders for products to addresses outside the U.S. Shipments to Alaska and Hawaii have shipping restrictions which may limit availability of certain products. We may change the locations where we offer services at any time.

13.3.4 Other Sales Limitations. We only knowingly sell services to adults, so you are not permitted to purchase services if you are under the age of majority where you live (typically this is eighteen (18) years old). An adult at least eighteen (18) years old with a valid, government issued photo ID must be present during any service appointment to authorize and approve all work completed. By agreeing to receive service(s), you authorize us to perform the requested service(s) and you represent that you have the right to authorize the performance of the service(s).

13.4 Rights to Make Changes

13.4.1 Our Rights to Make Changes. We may change the product to reflect changes in relevant laws and regulatory requirements. We will contact you if there are any material product changes prior to fulfilling your order. We may change the Designer assigned to your service order at any time and for our convenience but will endeavor to minimize changes to avoid rescheduling. The Designer may also make scheduling changes based on their schedule.

13.4.2 Your Rights to Make Changes. Please promptly contact us if you wish to make a change to your order for products or services. We will let you know if the change is possible. If it is possible, we will let you know about any changes to the price of the product or service, the timing of supply or anything else which would be necessary as a result of your requested change, and we will ask you to confirm whether you wish to go ahead with the change. Additional meetings, renderings, or other support from KBD Designer above and beyond the defined scope of the service may incur additional fees.

13.5 Performance of Services

13.5.1 Scheduling the Service. Upon checkout you will receive a style survey to provide photos and measurements for the given KBD project. The Designer will reach out to you to confirm a specific date and time for the first meeting based on project scope and Designer's schedule. Below is a detailed explanation of the Services based on your selection of KBD:

13.5.2 \$699 Service:

Step 1: You will complete a style survey and share photos and measurements.

Step 2: Designer reaches out to schedule the first meeting to discuss project scope & goals.

Step 3: Designer creates two (2) mood boards; product specifications & updates the floor plan to review with you during the 2nd meeting.

Step 4: Designer has renderings created of the chosen mood board and products.

Step 5: Designer presents renderings during 3rd meeting.

Step 6: Purchase desired product.

13.5.3 **\$299 Service:**

Step 1: You will complete a style survey and share photos and measurements.

Step 2: Designer creates a presentation containing survey selections (up to 2 mood boards & products) and floor plan for review during Zoom meeting.

Step 3: Designer emails you with final project details.

Step 4: Purchase desired product.

13.6 Price and Payment

13.6.1 **Price.** The prices of the services are indicated on the order pages when you place your order.

13.6.2 **Sales Tax.** Sales tax for the products and services, as applicable, will be shown on the checkout page. Taxes applicable to products are based on the billing address. Taxes applicable to services are based on the service location.

13.6.3 **Payment for Services.** We accept payment with, Visa, Mastercard, Discover, and American Express credit cards, and debit cards. When you purchase services, we pre-authorize or place a hold on your credit or debit card when you complete a check out, which can affect your balance or credit line. Upon completion of the services and the signing of the Acknowledgement of Service Completion form, we will remove the hold from your credit or debit card and charge you the full amount of the service.

13.7 Cancellations

13.7.1 **Service Cancellations & Refunds.** A service credit will only be given if notice of cancellation occurs at least 24 hours prior to the first virtual design meeting. However, a \$25 processing fee will still apply to any cancellation. Once the Bathroom Design Service has started, it is nonrefundable.

13.7.2 **Service Credit.** A service credit for the service fee will be given to customers who have purchased from KSS Store or ISC with a minimum threshold of \$7,000. The product orders must be placed with the Consumer Channel businesses, including Kohler.com , Inside Sales, or Kohler Stores. The service credit request must be submitted within 90 days of service completion.

13.8 Our Rights to Cancel the Order

13.8.1 **Our Rights to Cancel** We may cancel any order at any time upon notice to you if you have violated these terms or if we cannot reasonably deliver the services to you. The KBD must be initiated

within sixty (60) days of purchase. If the Bathroom Design Service Plan project has not started within this timeframe, the project will be closed without refund.

13.9 Product and Service Warranties

13.9.1 How to Tell Us About Problems. If you have any questions or complaints about the service, please call us at 1-800-4-KOHLER (1-800-456-4537).

13.9.2 Disclaimer of Other Warranties and Limitation on Liability. THE WARRANTIES DESCRIBED IN THIS SECTION ABOVE ARE IN LIEU OF ALL OTHER WARRANTIES, REPRESENTATIONS OR COVENANTS WITH RESPECT TO THE PRODUCTS, SERVICES AND OTHERWISE ARISING UNDER THIS AGREEMENT, AND KOHLER CO. EXPRESSLY DISCLAIMS ALL OTHER REPRESENTATIONS, WARRANTIES AND COVENANTS, EXPRESSED OR IMPLIED, INCLUDING BUT NOT LIMITED TO THE IMPLIED WARRANTIES OF MERCHANTABILITY, TITLE, NON-INFRINGEMENT AND FITNESS FOR A PARTICULAR PURPOSE, AND ANY WARRANTIES ARISING IN STATUTE, COURSE OF PERFORMANCE, COURSE OF DEALING OR USAGE IN TRADE. TO THE MAXIMUM EXTENT PERMITTED BY LAW, KOHLER CO. DISCLAIMS ALL OTHER REPRESENTATIONS, WARRANTIES AND COVENANTS, AND ALL LIABILITY FOR SPECIAL, INCIDENTAL, PUNITIVE, INDIRECT, EXEMPLARY OR CONSEQUENTIAL DAMAGES ARISING FROM OR RELATED TO YOUR PURCHASE, THE PRODUCTS, THE SERVICES OR YOUR INABILITY TO USE SUCH PRODUCTS OR SERVICES, REGARDLESS OF THE FORM OF ACTION, WHETHER OR NOT YOU HAVE ADVISED US OF THE POSSIBILITY OF SUCH LOSSES OR DAMAGES, OR WHETHER OR NOT WE SHOULD HAVE BEEN AWARE OF THE POSSIBILITY OF SUCH LOSSES OR DAMAGES. Some jurisdictions do not allow limitations of how long an implied warranty lasts or the exclusion or limitation of certain damages, so these limitations and exclusions may not apply to you. This warranty gives the consumer specific legal rights. You may also have other rights that vary from jurisdiction to jurisdiction.

13.10 How We May Use Your Personal Information

13.10.1 Personal Information Use. We will only use your personal information as set out in our Privacy Policy. Because services are provided by third-party Designers, by purchasing services you agree that we may share your personal information with the Designer assigned to provide the services. In addition, because the services may be performed via video, call, or otherwise in your home, the Designer may be inadvertently exposed to other personal information while the services are being performed.

13.11 Other Important Terms

13.11.1 No Assignment or Third-Party Beneficiaries. This agreement is between you and us. No other person shall have any right to enforce any of its terms against us. You are not permitted to assign this agreement to any third party, and assignment in violation of this provision is void. Any warranty coverage may only be assigned according to the assignment provisions of the applicable warranty.

13.11.2 Governing Law and Venue. These terms and any orders placed on KOHLER.com are governed according to the laws of the State of Wisconsin, U.S.A., without reference to its conflicts of law principles. The exclusive venue for any judicial action or dispute arising out of or relating to this Agreement will be the state courts located in Sheboygan County, Wisconsin, or the federal courts located in the Eastern District of Wisconsin, and each party waives any challenge to venue or personal jurisdiction.

13.11.3 Force Majeure. Delays resulting from any cause outside of our reasonable control, including without limitation, acts of God, acts or requests of government or governmental agencies in their non-commercial capacity, riot or civil commotion, sabotage, accidents, fire, flood, explosion, damage to plants or facilities, epidemics, typhoons, quarantine restrictions, government mandates, weather, supply chain shortages or delays, failures or delays of third-party service providers and shipping providers, or absence of a normal means of communication or transportation (each, a “Force Majeure Event”) will extend our time of performance under this agreement. You agree that we are not liable for any loss, damage, detention, breach, or delay resulting from a Force Majeure Event.

13.11.4 Severability. Each part and Section of this Agreement is severable if held invalid or unenforceable by a court of competent jurisdiction. The remaining portions of this Agreement will not be affected and will be valid and enforceable. The Section and paragraph headings in this Agreement are for convenience only and will not affect the interpretation of this Agreement.

13.11.5 Waiver. Our failure to exercise or delay in exercising any right, remedy, power, or privilege arising from this Agreement will not be considered a waiver thereof, and no single or partial exercise of any right, remedy, power, or privilege hereunder will preclude any other or further exercise thereof or the exercise of any other right, remedy, power, or privilege.

13.11.6 Survival. Terms in this agreement that, whether by implication or nature, are intended to survive will survive the cancellation, expiration or termination of this Agreement.

13.11.7 Discounts. Discounts are subject to limitations and exclusions. Discounts may not be applied retroactively to purchases already made and discounts are not transferable from other locations, physical stores, or other retailers, nor will Kohler.com price match

discounts from other locations. Except for errors described in the discounts that apply will be shown in the checkout at the time of purchase.

13.11.8 Agreement. This agreement, including any documents referenced or linked in this agreement, and any other terms and conditions found on our website (such as our website terms of use/legal terms) or otherwise agreed to by you contain the entire agreement between you and us with respect to your purchase of the products and services, and they supersede any prior or contemporaneous conversations, acknowledgement, emails, negotiations, or other documentation. Our sales and helpdesk representatives do not have the authority to modify this agreement.

Updated June 27, 2025